

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #13	CCRB Case #: 201701996	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/11/2017 12:50 AM	Location of Incident: § 87(2)(b); 71st Precinct stationhouse	18 Mo. SOL 9/11/2018	Precinct: 71		
Date/Time CV Reported Wed, 03/15/2017 4:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/15/2017 4:00 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Ryan	29928	952202	076 PCT
2. POF Jeanclaire Simmonds	26427	956261	076 PCT
3. POM Antoine Gilkes	09869	950494	PBBS SU

Officer(s)	Allegation	Investigator Recommendation
A . POM Antoine Gilkes	Abuse: In front of § 87(2)(b) in Brooklyn, PO Antoine Gilkes frisked § 87(2)(b)	A . Substantiated
B . POF Jeanclaire Simmonds	Force: In front of § 87(2)(b) in Brooklyn, PO Jeanclaire Simmonds pointed her gun at § 87(2)(b)	B . Unsubstantiated
C . POM Robert Ryan	Abuse: In front of § 87(2)(b) in Brooklyn, PO Robert Ryan searched the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . POM Antoine Gilkes	Abuse: In front of § 87(2)(b) in Brooklyn, PO Antoine Gilkes searched the vehicle in which § 87(2)(b) was an occupant.	D . Exonerated
E . POF Jeanclaire Simmonds	Abuse: In front of § 87(2)(b) in Brooklyn, PO Jeanclaire Simmonds threatened to arrest § 87(2)(b)	E . Unsubstantiated
F . POM Robert Ryan	Abuse: In front of § 87(2)(b) in Brooklyn, PO Robert Ryan threatened to arrest § 87(2)(b)	F . Unsubstantiated
G . POM Robert Ryan	Abuse: At the 71st Precinct stationhouse, PO Robert Ryan damaged § 87(2)(b)'s property.	G . Unsubstantiated

Case Summary

On March 15, 2017, § 87(2)(b) filed this complaint on behalf of himself and his wife, § 87(2)(b) with the CCRB by phone.

On March 11, 2017, at approximately 12:50 a.m., § 87(2)(b) and his wife were sitting inside of their vehicle, which was double-parked in front of § 87(2)(b) in Brooklyn (they reside at § 87(2)(b)). § 87(2)(b)'s vehicle was missing a rear license plate, and had the vehicle's registration information handwritten on a sign posted in the rear windshield. A black unmarked vehicle pulled up behind § 87(2)(b)'s vehicle, and PO Robert Ryan, PO Jeanclaire Simmonds, and PO Antoine Gilkes, all of Patrol Borough Brooklyn South Anti-Crime, exited the unmarked vehicle and approached § 87(2)(b)'s vehicle. § 87(2)(b) refused to roll down the windows of his vehicle for the officers, and PO Gilkes eventually opened the driver door and had § 87(2)(b) step out of the vehicle. PO Gilkes frisked § 87(2)(b) (**Allegation A**), and then placed him in handcuffs. § 87(2)(b) told § 87(2)(b) to record what was happening on his phone, and PO Simmonds pointed her gun at § 87(2)(b) and told her not to move (**Allegation B**). § 87(2)(b) was placed in the officers' vehicle, and PO Gilkes and PO Ryan searched § 87(2)(b)'s vehicle (**Allegations C and D**). PO Simmonds ran § 87(2)(b)'s information and discovered that he had an active bench warrant. § 87(2)(b) was placed under arrest at that time, and PO Ryan recovered a bag of marijuana on § 87(2)(b)'s person after searching him incident to the arrest. PO Simmonds told § 87(2)(b) she was going to be taken to jail as well (**Allegation E**), and § 87(2)(b) asked why. PO Simmonds responded that § 87(2)(b) was half-naked, and PO Ryan also stated that § 87(2)(b) could be arrested (**Allegation F**). § 87(2)(b) was transported to the 71st Precinct stationhouse for arrest processing, and charged with possession of a forged instrument, possession of marijuana, and disorderly conduct. PO Ryan searched § 87(2)(b)'s vehicle further for contraband at the stationhouse (**subsumed within Allegation D**). § 87(2)(b) traveled to the 71st Precinct stationhouse on her own, and was given possession of § 87(2)(b)'s vehicle after he concluded his search. § 87(2)(b) observed at that time that carpeting on the floor of the vehicle had been ripped up, and panels underneath the dashboard and been pulled down and damaged (**Allegation G**).

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation, due to § 87(2)(b)'s arrest.
- A notice of claim was submitted on May 19, 2017. It will be added to the case file upon its receipt (01 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint for [§ 87(2)(b)] and for [§ 87(2)(b)]
- PO Ryan has been a member of service for five years. There are no substantiated allegations on his record. There are three allegations of physical force against him across three cases. These have been closed as “exonerated,” “unsubstantiated,” and “complainant unavailable.”
- PO Simmonds has been a member of service for three years. There are no substantiated allegations on her record, [§ 87(2)(g)]
- PO Gilkes has been a member of service for five years. He has one prior substantiated allegation on his record for a discourteous action.

Findings and Recommendations

Explanation of Subject Officer Identification

The investigation determined by a preponderance of the evidence that PO Ryan and PO Gilkes conducted a cursory search of [§ 87(2)(b)]'s vehicle at the scene of his arrest, and that PO Ryan conducted a more thorough search of the vehicle by himself at the 71st Precinct stationhouse, based upon the officers’ statements, and [§ 87(2)(b)]'s statement that she did not see the officers search the vehicle at the scene of the arrest. [§ 87(2)(g)]

[REDACTED]

Allegations Not Pleaded

[§ 87(2)(g)]
[REDACTED]
[REDACTED]
[REDACTED]

[§ 87(2)(g)]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

Allegation A: Abuse of Authority – In front of § 87(2)(b) in Brooklyn, PO Antoine Gilkes frisked § 87(2)(b)

Neither § 87(2)(b) nor § 87(2)(b) initially alleged that PO Gilkes frisked § 87(2)(b) during this incident (05 Board Review and 06 Board Review). § 87(2)(g) . PO Gilkes stated that he frisked § 87(2)(b) after having § 87(2)(b) step out of his vehicle (07 Board Review). § 87(2)(b) was subsequently called by the CCRB and questioned about being frisked. During this phone statement, § 87(2)(b) stated that PO Gilkes frisked him after having him step out of his vehicle (08 Board Review). § 87(2)(g) .

PO Gilkes stated that he frisked § 87(2)(b) to ensure that he did not have any weapons on him. PO Gilkes' only reason to believe that § 87(2)(b) may have been armed during this incident was that § 87(2)(b) was speaking in an aggressive manner towards the police officers, and also making gestures such as waving his arms and pointing. PO Gilkes denied that there were any other factors or observations he made which caused him to believe that § 87(2)(b) was armed. PO Ryan denied that he made any observations about § 87(2)(b) during this incident which caused him to fear for his safety.

PO Gilkes denied that § 87(2)(b) was under arrest at the time of the frisk. Rather, he stated that § 87(2)(b) was being detained, and was not placed under arrest until later in the incident. PO Ryan also stated that § 87(2)(b) was merely being detained at this point in the incident, while the officers conducted a further investigation into § 87(2)(b)'s vehicle and apparently forged license plate. PO Ryan stated that § 87(2)(b) was not under arrest until the officers ran his information and saw that he had an open warrant (09 Board Review).

If an officer has probable cause to arrest an individual and is placing that person under arrest, the officer may frisk and search the individual incident to that lawful arrest. In order to frisk an individual who is not under arrest, an officer must reasonably suspect that the person is armed. People v. De Bour, 40 N.Y.2d 210 (1976) (10 Board Review).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B: Force – In front of § 87(2)(b) in Brooklyn, PO Jeanclaire Simmonds pointed her gun at § 87(2)(b)

§ 87(2)(b) stated that after § 87(2)(b) was placed in handcuffs, he told § 87(2)(b) to record what was happening on his phone. § 87(2)(b) started to reach for § 87(2)(b)'s cell phone, and PO Simmonds then allegedly pointed her gun at § 87(2)(b) and told her not to move. § 87(2)(b) also stated that he told § 87(2)(b) to record what was happening, and that PO Simmonds told her not to move, but he was not able to see PO Simmonds at that time, so he could not say whether PO Simmonds was pointing her gun at § 87(2)(b).

PO Simmonds denied that she pointed her gun at § 87(2)(b) as alleged, or that she ever drew her gun during this incident (11 Board Review). PO Ryan and PO Gilkes also denied observing PO Simmonds point her gun at § 87(2)(b) or drawing her gun at any time during this incident.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C: Abuse of Authority – In front of § 87(2)(b) in Brooklyn, PO Antoine Gilkes searched the vehicle in which § 87(2)(b) was an occupant.

Allegation D: Abuse of Authority – In front of § 87(2)(b) in Brooklyn, PO Robert Ryan searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that after he was placed in the police officers' vehicle, he observed PO Gilkes searching inside of his vehicle, in the driver seat area. § 87(2)(b) did not allege seeing any other officer search his vehicle at the scene of his arrest. § 87(2)(b) denied that she ever saw any officers search the vehicle at § 87(2)(b).

PO Ryan did not recall if he searched § 87(2)(b)'s vehicle at the scene of the arrest, but stated he “may” have searched the area around the driver seat. PO Ryan admitted to searching the entire vehicle at the 71st Precinct stationhouse, including every unlocked container, for arrest evidence. PO Ryan did this because he smelled marijuana coming from the interior of § 87(2)(b)'s vehicle. He also observed smoking papers scattered on the floor of the vehicle between the two front seats, and recovered a small bag of marijuana from § 87(2)(b)'s person at the scene of his arrest.

PO Gilkes admitted to reaching inside of § 87(2)(b)'s vehicle after § 87(2)(b) was brought to the police vehicle to retrieve a wallet that was sitting on the driver seat of § 87(2)(b)'s vehicle. PO Gilkes denied searching the vehicle at the scene of the arrest or at the 71st Precinct stationhouse, and he did not know whether PO Ryan or PO Simmonds searched the vehicle at either of those locations. PO Gilkes stated there was a faint odor of marijuana coming from inside of § 87(2)(b)'s vehicle.

PO Simmonds stated that while she was checking § 87(2)(b)'s name for open warrants at the scene of the arrest, PO Gilkes and PO Ryan searched § 87(2)(b)'s vehicle. PO Simmonds did not know what areas of the vehicle they searched. She stated that the officers searched the vehicle due to the strong odor of marijuana coming from the vehicle, and because § 87(2)(b) was under arrest at that time. PO Simmonds did not know if officers searched the vehicle at the 71st Precinct stationhouse. All of the officers stated that they noticed the smell of marijuana either immediately upon approaching § 87(2)(b)'s vehicle, or shortly into the vehicle stop.

The odor of marijuana emanating from a vehicle grants an officer probable cause to conduct a warrantless search of the vehicle. People v. Chestnut, 43 A.D.2d 260 (1974) (12 Board Review).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] It is therefore recommended that
Allegations C and D be closed as **exonerated**.

Allegation E: Abuse of Authority – In front of § 87(2)(b) in Brooklyn, PO Jeanclaire Simmonds threatened to arrest § 87(2)(b)

Allegation F: Abuse of Authority – In front of § 87(2)(b) in Brooklyn, PO Robert Ryan threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that while the officers were running § 87(2)(b)'s information, PO Simmonds told § 87(2)(b) that she was going to be taken to jail as well. § 87(2)(b) asked why, and PO Simmonds replied that § 87(2)(b) was half-naked. PO Ryan then also told § 87(2)(b) that she could be arrested. § 87(2)(b) was in the officers' vehicle at this point of the incident, so he could not speak to these allegations.

PO Simmonds denied telling § 87(2)(b) that she could be arrested during this incident, and denied hearing PO Ryan say this either. PO Simmonds also denied that the officers could have arrested § 87(2)(b) during this incident. PO Ryan did not recall telling § 87(2)(b) she could be arrested, and denied hearing PO Simmonds make this statement. PO Gilkes denied hearing PO Simmonds or PO Ryan tell § 87(2)(b) she could be arrested during this incident, but stated that the officers could have arrested her for possession of a forged instrument.

§ 87(2)(g)
It is therefore recommended that **Allegations E and F** be closed as **unsubstantiated**.

Allegation G: Abuse of Authority – At the 71st Precinct stationhouse, PO Ryan damaged § 87(2)(b)'s property.

§ 87(2)(b) stated that when he observed his vehicle the day after his arrest, carpeting on the floor by the driver seat had been ripped up, and that panels on the front passenger door had been pulled off. He denied observing any other damage, and stated that this damage had not been present prior to this incident.

§ 87(2)(b) stated that when she was given § 87(2)(b)'s vehicle back at the 71st Precinct stationhouse, the carpeting in the front seats of the vehicle had been ripped up, and that panels underneath the dashboard had been pulled down. § 87(2)(b) e-mailed photographs of the alleged damage to the CCRB on March 29, 2017 (13 Board Review).

PO Ryan stated he searched the entirety of § 87(2)(b)'s vehicle at the 71st Precinct stationhouse, but he denied pulling up any carpeting, pulling down any panels underneath the dashboard, or pulling off any panels on the doors of the vehicle. PO Ryan denied causing any damage to the vehicle during the course of his search. PO Ryan was shown the photographs sent by § 87(2)(b) of the damage to the vehicle, and he stated that he did not observe any of the

damage shown in the photographs during this incident, but stated the vehicle was in poor condition generally prior to his search of it. PO Ryan denied causing any of the damage depicted in the photographs.

Both PO Gilkes and PO Simmonds denied observing any damage to the interior of § 87(2)(b)'s vehicle at any time during the incident, but stated that it was an old vehicle in a poor condition when the officers first approached it. Both officers denied observing any of the damage depicted in the photographs sent by § 87(2)(b) at any time during this incident.

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Squad: 13

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date